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第二科

擬移亞東司 十二.廿

中華民國卅五年十二月廿[illegible]日

子繩樸 十二.卅

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事由	擬辦	批示
	擬复收到並詢英方已否答覆 十二.四	

駐英吉利國大使館代電

民國卅五年十二月十四日發

倫字第五九四九號

外交部鈞鑒 關於滬市台僑恢復國籍事東第一六九號代電敬悉奉飭遵以十一月二十日暨十二月四日兩度再向英外部提出節略 茲特抄附該節略兩份 乞鑒核 駐英大使鄭天錫

外交部亞東司 收文 35 字第515號

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F.O. 46/243

MEMORANDUM

The Chinese Ambassador presents his compliments to His Majesty's Principal Secretary of State for Foreign Affairs and, pursuant to instructions from the Minister for Foreign Affairs, has the honour to refer to the question of the status of former Formosans on which the views of His Majesty's Government were set forth in the Note F/12783/2027/23 of the 26th September, 1946.

2. It may be recalled that when the island of Formosa was restored to China, a Decree was promulgated by the Executive Yuan of the Chinese Government, in 1945, giving effect to the re-acquisition of Chinese nationality by former Formosans abroad. Chinese diplomatic and consular authorities were instructed to accord the former Formosans under their jurisdiction the same treatment as that which is given to other Chinese nationals.

3. In order to seek the co-operation of governmental or military authorities in the territories in which the former Formosans may reside, the Chinese government took steps to inform the governments or military authorities concerned of the application of the said Decree. The Supreme Command for Allied Forces in Japan has agreed to co-operate with the Chinese authorities to this end.

4. If there should be any differential treatment of former Formosans abroad, who are now Chinese nationals, as a result of different interpretations placed on the status of such persons, difficulties would arise when the Chinese authorities exercise their jurisdiction over these persons or when such persons travel with Chinese identity papers or other documents from one territory to another.

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5. It is therefore presumed that the instructions sent by His Majesty's Government to the British authorities concerned that Formosans should be treated as nationals of a friendly country, would enable the British authorities to recognize the competence of Chinese diplomatic and consular officials to deal with all matters relating to former Formosans, who are now Chinese nationals, and to accord such Chinese nationals the same treatment as that which is, or may be, accorded to other Chinese nationals or any other nationals of allied countries in the territory. As it is desirable that the position of the former Formosans who are now Chinese nationals in British territories should be definitely regularised as soon as possible, the Chinese Government would like to know whether this is also the understanding of His Majesty's Government.

6. Reference was made in the above-mentioned Note to the execution of some formal diplomatic instrument as an alternative to the conclusion of a Peace Treaty with Japan, by which recognition could be given to the transfer of sovereignty over Formosa from Japan to China. Without prejudice to the issue in question, the Chinese Government desires to enquire what form the proposed diplomatic instrument should take and in what way it would give full effect to the recognition.

CHINESE EMBASSY,

London.

10th December 1946.